

REQUIRED GUIDANCE



Policy and Procedure Manual

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Section 4: Custody

Washington State WIC Program

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Section 4: Custody

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REQUIRED GUIDANCE: Definitions

Definitions

Caretaker: A term used in Cascades to designate a person who can seek and obtain WIC services for an infant or child when designated by a Parent Guardian.

Custodian: The person(s) with legal responsibility for the care, control, and maintenance of an infant or child. This person would be listed as Parent Guardian 1 and 2 in Cascades.

- This includes:
 - Both parents
 - One parent
 - A third person or party appointed by a court
 - Department of Children, Youth and Families (DCYF) – when a child is placed in foster care

Department of Children, Youth & Families (DCYF): DCYF is a Washington state agency that works to support children, youth, and families. It oversees the state's child welfare, juvenile rehabilitation, and early care and education programs.

Foster care: A temporary legal arrangement in which a child is placed with an approved caregiver when Child Protective Services (CPS) has determined the child can't safely remain in their home. When CPS removes a child, one placement option is foster care. In this situation, the child becomes a *ward of the state*, meaning the Department of Children, Youth & Families (DCYF) or another licensed child placement agency, such as a Tribal placement agency, is the child's legal custodian.

For the purposes of the WIC program, a child in foster care is considered a household of one, even when siblings are placed in the same foster home. Foster parents may receive a monthly caregiver support payment to support the child's needs; this payment is considered the foster child's income. This payment may also be referred to as a foster care stipend, grant or reimbursement. Foster caregivers receive written Caregiver Authorization from DCYF.

Note: Throughout this document, references to DCYF include other licensed child placement agencies, including Tribal placement agencies.

Guardian: When children are voluntarily placed with a third party. The third party may or may not be a family member. Often this may happen as a parent is at risk of having the children taken by CPS; they voluntarily move the child to a trusted third party. This person may or may not have a court order of guardianship. In this case the child is not in foster care. For WIC purposes, the person assigned to take care of the child is the parent guardian and the WIC program must assess eligibility based on the guardian's household to determine if a child qualifies for WIC benefits.

Guardianship Order: A court order designating an individual as the guardian of a child under [Chapter 13.36 RCW](#) or [Chapter 11.130 RCW](#). Guardians typically have full custody and legal decision-making power on behalf of a child. The terms of guardianship are found in the court order. The child is not in foster care, and therefore the WIC program must assess income eligibility based on the guardian's household to determine if a child qualifies for WIC benefits.

Guardian ad litem (GAL): A person appointed by a court to represent the interests of a child, usually in custody disputes or dependency matters. This person typically would not be responsible for the care of the child and is not the custodian of the child; however, they do have rights to the entire WIC record.

Kinship Care: DCYF uses the term Kinship Care when a child is placed by DCYF with relatives, suitable others (such as close family friends or unrelated kin), or relatives defined by Tribal code or custom. These caregivers may be licensed or unlicensed. The foster care definition above applies to these placements.

Approved DCYF kinship caregivers may choose to apply for a kinship license, which provides a monthly caregiver support payment. However, licensing is optional. Regardless of licensing status, the child is still considered a foster child. Kinship caregivers also receive Caregiver Authorization documentation from DCYF.

Informal Relative/Friend Care: Refers to a private, unregulated caregiving arrangement made when parents are unable to care for their child. This is sometimes called *informal kinship care*. In these situations, DCYF is not involved in the child's placement. Because DCYF is not the legal custodian, this type of care is not considered foster care. See the required guidance, [When a Non-Custodian is Designated to Act on the Child's Behalf](#).

Non-Custodian: A person who is authorized to seek services for an infant or child but does not have the same legal authority as a custodian. That is, they don't have the authority to:

- Designate others to the role of custodian, parent/guardian, or caretaker.
- Transfer the child to another agency without custodian authorization.
- Authorize the release of information (ROI), to request the release of the child's WIC record to another entity.
- Request and receive the child's WIC record.

Parent Guardian: “Parent Guardian 1” and “Parent Guardian 2” are the terms used in Cascades to designate the person(s) who will seek and obtain WIC services for an infant or child. Cascades requires someone to be designated as Parent Guardian 1.

REQUIRED GUIDANCE: Custodians

A Custodian is a person with legal responsibility for the care, control, and maintenance of an infant or child. They have full or partial custody of the child, that is, they are the child's custodian. This can include:

- Both parents
- One parent
- A third person or party appointed by a court.
- DCYF or Tribal Agency – when a child is placed in foster care.

See “[Foster Care](#)” section in this required guidance.

A child's parents are usually both custodians unless a court has revoked parental rights.

A court may appoint another person, known as a third party, to be a custodian:

- After the third party has petitioned for custody.
- After a court has found a child to be dependent (abandoned, abused, or neglected) under [Chapter 13.34 RCW](#).
- If both parents have died.
- When a child is in foster care due to a Child Protective Services (CPS) intervention, the Department of Children, Youth and Families (DCYF) is the custodian, not the foster parent. DCYF authorizes the foster parent to seek services for the child through caregiver authorization. See the “[Foster Care](#)” section in this required guidance.
- If custody changes or if there is a question or dispute about who the legal custodian of a child is, staff must review proof of custody. If uncertainty remains, staff must consult state WIC Policy Support.
 - See the following sections in this required guidance:
 - [Changes in Custodians](#)
 - [When Custody is in Dispute](#)
 - [Foster Care](#)

A Custodian can:

1. Request and receive WIC benefits for an infant or child and bring them to the initial certification and subsequent certification appointments.
2. Attend all WIC appointments such as the mid-certification health assessment and nutrition education appointments.
3. Receive a WIC Card and purchase WIC food benefits.
4. Designate another person as a Parent Guardian 1 or 2, Caretaker or Proxy in Cascades.
5. Transfer the participant to another WIC clinic.
6. Request and receive the participant's WIC record.
7. Sign the Release of Information (ROI) form which allows staff to share the participant's WIC health information with others.

PROCEDURE:

Staff:

- A. When necessary, determine if the person is a Custodian based on the information in this policy.
- B. Enter the Custodian in Cascades as a Parent Guardian.
 1. If there's only one Custodian, list this person as Parent Guardian 1 on the Family Demographic screen.
 2. If there are two Custodians who will both be seeking WIC services for an infant or child list the second person as Parent Guardian 2.
 - Both Custodians have the same authority.
- C. Provide WIC services for the infant or child to the Custodian(s).

See "A Client or Custodian Release of Confidential Participant Information" policy in [Chapter 25 - Legal Considerations and Confidentiality](#).

REQUIRED GUIDANCE: Changes in Custodians

A child's custodian may change when:

- A. Parents separate or divorce and the parenting plan assigns custody to one of the parents or assigns shared custody.
 - 1. The parenting plan is an agreed upon plan that defines each parent's role in their child's custody. A judge signs a parenting plan to make it a legally enforceable court order under [Chapter 26.09 RCW](#).
 - 2. A parenting plan doesn't use the term "custody" but does allocate what percentage of "residential time" each parent has with the child. Under state law, if a custody determination is required, the parent, the child is designated to live with a majority of the time, is designated as the custodian of the child.
 - 3. This designation doesn't affect the other parent's rights and responsibilities as a parent. See [RCW 26.09.285](#).
- B. A parent voluntarily or involuntarily loses custody when the court appoints a new custodian.
- C. Parents die or go missing.
- D. When a child is placed in foster care. See "[Foster Care](#)" section in this required guidance.
- E. When foster placement changes or ends.

See "[Custodians](#)" section in this required guidance.

PROCEDURE:

Staff:

- A. View legal documentation to confirm that the new person is a Custodian.
 - 1. Document the situation for custodian change in the child's Individual Care Plan. Include:

- Type of document reviewed
- Effective date
- Custodian name

Note: When a child in foster care is returned to the biological parent, there is a court order that returns with them, or a letter from DCYF. It is also appropriate to contact the caseworker for verbal confirmation.

B. Determine if the child will remain in the same household.

1. If the child remains in the same household, change the Parent Guardian name in the child's record if needed.
2. If the child moves to a new household:
 - a. Transfer the child's record into the new Parent Guardian household if it exists.
OR
 - b. Create a new household record, designate that person as Parent Guardian 1 or 2 in Cascades, and transfer child's record in.

C. Provide WIC services for the infant or child to the new Custodian.

1. View new Custodian ID to verify it matches documentation.
2. Reassess income eligibility if household changes.
3. The new Custodian must sign the [Rights and Responsibilities Form](#) agreeing to abide by program rules.

D. Deactivate the current WIC Card and issue a new one.

REQUIRED GUIDANCE: Foster Care

When the Department of Children, Youth & Families (DCYF) places a child with a foster parent:

1. The child is considered a household of one.
2. All children in foster care receive Medicaid and are adjunctively eligible for WIC.
3. The household income equals the amount of the caregiver support payment the foster parent receives for taking care of the child.

Note: The caregiver support payment may also be referred to as a stipend, reimbursement, or grant.

4. If siblings are placed in the same foster household, they are each considered a family of one.
5. The parent guardian (custodian) of the child is DCYF.
 - DCYF authorizes the foster parent to seek services on behalf of the child.
 - If DCYF authorizes a second person to seek services for the child, e.g. the spouse of the foster parent, staff must list this person as Parent Guardian 2.

Note: Only DCYF may authorize this second person.

6. If the child in foster care is a member of a Tribe, they are still a household of one for WIC purposes and the foster care document will direct who is authorized to act on the child's behalf.

Staff must view foster care authorization from DCYF and document in Cascades.

If foster care authorization documentation is not immediately available, staff must provide a 30 day grace period and up to one month of food benefits.

If a family or friend has physical custody of a child or a child has been informally placed without DCYF placement, this is NOT considered foster care or kinship care.

- See "[When a non-Custodian is Designated to Act on the Child's Behalf](#)" and "[Definitions](#)" for foster care, kinship care, and informal family/relative care in this required guidance.

PROCEDURE:

Staff:

A. Review foster care authorization from DCYF. Authorization must include:

- Foster caregiver name(s)
- Child name and date of birth
- Authorizing agency name and contact
- Authorization for foster caregiver to seek services for the child

Note: DCYF will always provide the foster family with documentation for foster care and kinship care authorization. Refer to “[Definitions](#)” for Foster and Kinship Care at the beginning of this required guidance.

- DCYF provides a “Caregiver Authorization” form.
- Tribes may provide a letter or form.

B. Only document the name(s) listed in the foster authorization document as the Parent Guardian 1 and 2.

- Foster parents may not authorize additional guardians.

C. Document foster care information on the Participant Demographics screen in Cascades:

- a. Select “Yes” in the Foster Family box.
- b. Enter the foster placement date in the Foster Care Entry Date field.
- c. Select the type of proof viewed for foster care in the Proof of Foster Care drop down. Caregiver authorization is proof of foster care.

D. Document the caseworker’s name and phone number in the infant’s or child’s Individual Care Plan (ICP).

E. Follow the same certification policies for children in foster care. See [Chapter 18– Certification](#).

- The foster parent must sign the [Rights and Responsibilities Form](#) agreeing to abide by program rules.
 - Assess income eligibility.
 - Foster children are adjunctively eligible through Medicaid. Enter Provider 1 number to verify adjunctively eligibility.
 - Use foster stipend/caregiver support payment amount for the household income and family size of one for each foster child.
 - View foster caregiver ID to verify it matches authorization documentation.
- F. May not provide copies of the participant's WIC records to the foster parents. Foster parents aren't authorized to request them.
- G. Provide up to 30 days grace period and up to one month of food benefits if the foster care authorization documentation is not available at the time of the appointment.
- Create a Family Alert to document 30 day grace period to receive foster care authorization documentation.
 - Schedule the family for Food Benefit Issuance in one month to receive and record foster care authorization documentation.
 - View foster care authorization documents and enter information in the Participant Demographics foster fields in Cascades and the Individual Care Plan once received.
 - If foster placement documentation isn't provided within 30 days, consider if Required Guidance: "[When a non-Custodian is Designated to Act on the Child's Behalf](#)" applies. Foster grace period can't be extended.
- H. Require documentation for change of custodian if foster placement ends and child returns to parents, or if foster child moves to a new placement. See "[Changes in Custodians](#)" in this required guidance.

REQUIRED GUIDANCE: When a non-Custodian is Designated to Act on the Child's Behalf

A custodian or court can designate a person(s) (non-custodian) to assume responsibility for the care of an infant or child and act on their behalf in the custodian's absence. This is not foster care.

A non-custodian seeking services for a child must be 18 years or older unless he or she is the parent, spouse or partner of the WIC participant.

If the custodian is not available to designate a non-custodian to seek WIC services for the infant or child, and staff are unable to obtain court documents or verify guardianship, the person with physical custody of the child is determined to be the guardian for the purpose of issuance of WIC food benefits. A statement from the non-custodian that explains the situation is required to issue benefits for up to one month until the court document or custodian documentation is available.

A non-custodian can:

1. Request and receive WIC benefits for a WIC participant and bring the participant to all WIC appointments including initial certification and subsequent certifications, mid-certification health assessments, and nutrition education appointments.
 - The person needs to bring all appropriate documentation, including income, ID and residency proofs.
 - The person signs the [Rights and Responsibilities form](#) when they bring the infant or child to a certification or subsequent certification appointment.
 - The person needs to have knowledge about the participant's health and feeding practices.
2. Receive a WIC Card and purchase WIC food benefits.

The non-custodian can't:

1. Designate another non-custodian to seek services for the infant or child.

2. Authorize the release of a child's record
3. Request and receive the child's record

See the "Legal Authority of Custodians, Caretakers, and Guardian Ad Litem" table in the Appendix of [Chapter 25 – Legal Considerations and Confidentiality](#).

PROCEDURE:

Staff:

- A. Review a written statement or court document from custodian.
 - Create Family Alert to indicate non-custodian.
- B. Accept statement from non-custodian when statement from custodian or court document isn't available.
 - Create Family Alert to indicate that non-custodian proof required within one month.
- C. Document the situation for non-custodian in the child's Individual Care Plan. Include:
 - Type of document reviewed.
 - If applicable, the situation why statement from custodian or court document not available.
 - Effective date.
 - Non-custodian name.
- D. Determine if the child will remain in the same household.
 1. If the child remains in the same household, add them as Parent Guardian 2 or change the Parent Guardian name in the child's record if necessary.
 2. If the child moves to a new household:

- a. Transfer the child's record into the new Parent Guardian household if it exists.

OR

- b. Create a new household record, designate that person as Parent Guardian 1 or 2 in Cascades, and transfer child's record in.

E. Provide WIC services to the new non-custodian.

1. View new custodian ID to verify it matches documentation.
2. Re-assess income eligibility if household changes.
3. The new non-custodian must sign the [Rights and Responsibilities Form](#) agreeing to abide by program rules.
4. If the statement from custodian or court document isn't available for review, staff must provide a 30 day grace period and up to one month of food benefits. Contact state WIC Policy Support if grace period ends and document isn't available.

F. Deactivate the current WIC Card and issue a new one if needed.

REQUIRED GUIDANCE: When Custody is in Dispute

Staff must require proof of custody if there is a dispute about custody.

PROCEDURE:

Staff:

- A. Require the person claiming they are now the Custodian to present the proper legal documents, such as a court approved parenting plan, a court order for third party custody, or an order for guardianship.

See “[Changes in Custodian](#)” in this require guidance.

- B. In the case of a parenting plan that says residential time is 50-50:

1. Both parents can be listed as Parent Guardians in the household.
2. The disputing custodians must work out who will receive WIC benefits.

See “[REQUIRED GUIDANCE: WIC Food and Formula Should Follow the Participant when an Infant or Child Lives in Multiple Households](#)” in this required guidance.

Note: If the disputing custodians can’t decide who will receive WIC benefits, contact the state WIC Policy Support line.

- C. If legal documents determining custody aren’t available, staff may obtain a ROI and contact a professional who is looking after the interests of the child, if any.

1. This professional may confirm custody or provide guidance on who is the appropriate person to manage the WIC benefits for the infant or child.
 - Examples of this type of professional include the participant’s social worker, case manager, lawyer, public health nurse, or guardian ad litem.

- D. If no legal documents are available and no professional is looking after the interests of the child staff may:

1. Accept a written, signed, and dated statement from person(s) claiming to be the Custodian(s).

2. Issue one month's worth of food benefits at a time to the new custodian until custody is confirmed.
3. Create Family Alert to indicate issue one month benefits to the new custodian until custody is confirmed.

See "[Changes in Custodians](#)" in this required guidance for further actions.

If staff issued food benefits to a person that afterwards is determined to not have custody, staff must deactivate that WIC Card and report the situation to the state WIC staff.

REQUIRED GUIDANCE: WIC Food and Formula Should Follow the Participant when an Infant or Child Lives in Multiple Households

Staff must:

- Issue the WIC Card to only one household when an infant or child lives in multiple households.
- Both parents should be listed as parent/guardians in Cascades.
- Inform the participant's parent guardian that they are responsible for assuring the WIC food and formula is in the household when the infant or child is present.

PROCEDURE:

Staff:

- A. Issue the WIC Card to only one household and encourage the parent guardians to share the participant's WIC foods and formula in proportion appropriate to the time the participant spends in the other household(s).
 1. Remind the parent guardian per the signed Rights and Responsibilities form, WIC food and formula are only for the person on WIC. Parent Guardian must assure WIC food/formula follow the child.
 2. Contact WIC Policy Support when parent guardians are unable to agree.
- B. Issue the WIC Card to a specific household when a parenting plan establishes that a child will be in one household a majority of time, unless the parent guardians agree otherwise.